

24VECV05588 24VECV05588

County: los-angeles

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Tentative Ruling

Mohammadi v. Farmers Insurance

Exchange, Case no. 24VECV05588

Hearing date September 3, 2026

Plaintiff

Mohammadi's Motion to Compel Further Responses

Plaintiff

Mohammadi sues defendant Farmers Insurance Exchange for breach of contract, breach of the implied covenant of good faith and fair dealing, violations of Bus. & Prof. §17200, et seq. and derivative causes of action, alleging he was injured in a motor vehicle incident, and defendant insurer failed to pay benefits.

Plaintiff

moves to compel further responses to special interrogatories, set one, and for monetary sanctions. Defendant opposes. The parties were unable to resolve the dispute at IDC. 7/23/26 Min. Order.

Per

Code Civ. Proc. §2031.310(a) "demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive..."

Plaintiff

served 70 special interrogatories, set one. Plaintiff asserts defendant served baseless objections and evasive responses to nos. 1, 5, 8, 15, 26, 27, 30, 33, 36, 39, 40, 48, 49, 51, 52, 62, 63, 65, 67, and 68. See Decl. Jimenez, exh. B. Plaintiff asserts defendant improperly exercised the “Document Production Option” regarding responses nos. 1, 5, 8, 15, 27, 30, 33, 36, 39, 40, 48, 49, 51, 52, 62, 63, and 65. Id. Plaintiff argues defendant improperly asserts attorney-client and work product privilege objections. Plaintiff further argues defendant improperly refers to documents not sufficiently specified to allow plaintiff to locate and identify the responses. See Code Civ. Proc. §2030.230.

Defendant

argues its responses contain reference to Bates stamp ranges, allowing plaintiff to locate the responses. Defendant argues its privilege and work product doctrine objections were proper and stands on the objections. Defendant asserts it offered to produce responses previously withheld on the basis of privacy if plaintiff enters into a protective order, and plaintiff failed to respond. See Decl. McKeon, exh. F. Defendant asserts it agreed to serve further responses to SROG no. 67. Opp., 5:15-18.

Per

Code Civ. Proc. §2030.230: “[i]f the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained.” Providing responses consisting of Bates stamp ranges is consistent with *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783–784. The responses to nos. 1, 5, 8, 15, 27, 30, 33, 36, 39-40, 48-49, 51-52, 62-63 and 65 are sufficient.

To

the extent responses were withheld exclusively on privacy grounds, production is warranted pursuant to protective order. Counsel to jointly draft a proposed protective order, to be filed by plaintiff’s counsel within 10 days of hearing. Counsel may wish to use the model protective order available on the court website. Subsequent to, and contingent on, the protective order being filed,

defendant is to serve further responses to nos. 26 and 68 within 30 days.

To

the extent responses were withheld on privilege grounds, defendant to provide a privilege log, stating the portions of each interrogatory being objected to and providing code-compliant responses to all remaining portions of the interrogatory. Code Civ. Proc. §2030.240. Responses within 30 days of hearing.

Defendant

admitted further responses to no. 67 are warranted, and the court ordered further responses to nos. 26 and 68, subject to protective order. Monetary sanctions are mandatory per Code Civ. Proc. §2030.300(d). As defense counsel was responsive and participated in meet-and-confer efforts and IDC, there is no basis to sanction defense counsel. Sanctions against defendant only.

Plaintiff

requests a reasonable hourly rate of \$350/hour. Decl. Jimenez, para. 7. Plaintiff requests 4 hours for motion drafting, 1 hour for opposition/reply and 1 hour for hearing (6 hours x \$350/hour). Id. These hours are reasonable and granted, plus \$60 in filing fees.

GRANTED.

Responses as above and sanctions payable by defendant only within 30 days.